

FOURTH SCHEDULE.

Section 126.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
50 & 51 Vict. c. 58.	The Coal Mines Regulation Act, 1887.	The whole Act, except sections one, three, twelve, thirteen, fourteen, and fifteen.
59 & 60 Vict. c. 43.	The Coal Mines Regulation Act, 1896.	The whole Act.
63 & 64 Vict. c. 21.	The Mines (Prohibition of Child Labour Underground) Act, 1900.	The whole Act so far as it relates to mines to which this Act applies.
3 Edw. 7. c. 7.	The Coal Mines Regulation Act (1887) Amendment Act, 1903.	The whole Act.
6 Edw. 7. c. 53.	The Notice of Accidents Act, 1906.	Sections one, two, three, and five so far as they relate to mines to which this Act applies.
7 Edw. 7. c. 10.	The Employment of Women Act, 1907.	Section one, so far as it relates to the Coal Mines Regulation Act, 1887.
10 Edw. 7. & 1 Geo. 5 c. 15.	The Mines Accidents (Rescue and Aid) Act, 1910.	The whole Act so far as it relates to mines to which this Act applies.

CHAPTER 51.

An Act to amend the Burgh Police (Scotland) Acts so as to provide for the further Regulation of Places for Public Refreshment in Scotland. [16th December 1911.]

WHEREAS it is expedient to extend the provisions of the Burgh Police (Scotland) Act, 1903, regulating ice-cream and aerated-water shops to certain other places for public refreshment, and to make further provision for the regulation of such places :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Regulation
of places for
public re-
freshment.

3 Edw. 7. c. 33.

1.—(1) Subsection (1) and subsection (3) of section eighty-two of the Burgh Police (Scotland) Act, 1903, shall respectively be amended by the omission of the words “an ice-cream shop or aerated-water shop” occurring therein and by the insertion in lieu thereof of the words “a place for public refreshment at any time between the hours of eight of the clock at night and five of the clock of the following morning or at any time on Sunday.”

(2) Subsection (2) of the said section shall be amended by the insertion after the word “daily” occurring therein of the words “except on Sunday, when the byelaws may provide for closing throughout the day or for any specified hours; and to make byelaws regulating the internal construction, lighting, and arrangement of such premises with a view to the orderly conduct and control thereof, and such byelaws may be made either for the whole burgh, or for any specified part or parts thereof;” and subsection (4) of the said section shall be amended by the insertion at the end thereof of the words “provided that no byelaw made in pursuance of the powers conferred by this section shall take effect until it has been confirmed by the Secretary for Scotland.”

(3) The word “constable” occurring in subsection (3) of the said section shall be repealed.

(4) Any reference to section eighty-two of the Burgh Police (Scotland) Act, 1903, in that Act or in any other Act shall be construed as a reference to that section as amended by this Act, and, where the said section has, prior to the commencement of this Act, been adopted by a town council or a county council, it shall, after such commencement, be deemed to have been adopted as so amended.

55 & 56 Vict.
c. 55.

(5) Section three hundred and eighty of the Burgh Police (Scotland) Act, 1892 (whereof the marginal note is “Penalties for offences”), shall, so far as required to bring subsection (2) and subsection (6) thereof into operation in a county outwith burghs and police burghs, have effect throughout the county as if it were herein re-enacted with the substitution of the county council for the magistrates, and offences thereunder may be tried summarily.

3 Edw. 7. c. 25.

(6) Any person who is convicted of an offence under subsection (2) of section three hundred and eighty of the Burgh Police (Scotland) Act, 1892, or the corresponding section or subsection of any local Act, or under section seventy-six of the Licensing (Scotland) Act, 1903, shall, in addition or as an alternative to any other penalty, be liable in the discretion of the court to have his name removed from any register provided under section eighty-two of the Burgh Police (Scotland) Act, 1903, as amended by this Act, for such period not exceeding six months as the court shall order.

(7) Nothing contained in section eighty-two of the Burgh Police (Scotland) Act, 1903, as amended by this Act, shall affect

or prejudice the sale or supply of refreshments or provisions in any premises to persons residing or lodging therein, or at any railway refreshment room; or shall be construed as allowing any premises to be kept open at any time at which they are required under the provisions of the said Act or any other Act for the time being in force to be kept closed, or (except as expressly provided) as affecting or derogating from the provisions of the said Act or any other Act respecting the right of entry to or other regulation of premises to which the said section eighty-two applies.

2. On a representation being made to any two magistrates of a burgh or any two members of a committee appointed for the purpose by the county council of a county where section eighty-two of the Burgh Police (Scotland) Act, 1903, is in operation by the occupier of any place for public refreshment within the burgh or the county, as the case may be, that it is intended that a special entertainment, whether of a public or of a private nature, is to take place therein during any specified time, such two members may grant such occupier a special permission in writing to open or to keep open such place, if it be a place for public refreshment registered under the section aforesaid, beyond the hours prescribed by any by-law under that section applicable thereto or, if the place be not so registered beyond the hour of eight o'clock at night, for such time as such members may see fit to prescribe: Provided that in the latter case such opening shall not be held to require the place to be registered as aforesaid.

Special permission to keep open.

3. In section eighty-two of the Burgh Police (Scotland) Act, 1903, as amended by this Act the expression "place for public refreshment" includes any building or part of a building or other place of public resort for the sale for consumption therein of provisions or refreshments of any kind (including confectionery, ice-cream, as defined in the said section, fruit, and aerated waters), but does not extend to any premises certificated or registered under the Licensing (Scotland) Act, 1903, or any premises in respect of which a licence or other sanction or permit is for the time being in force, issued in virtue of specific powers conferred on a town council or other authority by the Burgh Police (Scotland) Acts or any other statute.

Definition.

4. This Act shall come into operation after the expiration of three months from the passing thereof; and until that expiration nothing in this Act contained shall affect or prejudice the provisions of section eighty-two of the Burgh Police (Scotland) Act, 1903, or the provisions of any local Act respecting the licensing of persons for the sale of ice-cream or the regulation of ice-cream shops or aerated water shops, or the enforcement of any byelaws thereunder respectively; but after that expiration all such provisions in local Acts and all such byelaws shall cease to be in force.

Commencement of Act.

Extent and
citation.

5. This Act shall apply to Scotland only, and may be cited as the Burgh Police (Scotland) Amendment Act, 1911, and this Act and the Burgh Police (Scotland) Acts, 1892 to 1903, may be cited collectively as the Burgh Police (Scotland) Acts, 1892 to 1911.

CHAPTER 52.

An Act to prohibit the sale and use for the purpose of the manufacture of certain articles of unclean Flock manufactured from Rags. [16th December 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Prohibition of
sale and use
for the purpose
of the manu-
facture of cer-
tain articles of
unclean flock
manufactured
from rags.

1.—(1) It shall not be lawful for any person to sell or have in his possession for sale flock manufactured from rags or to use for the purpose of making any article of upholstery, cushions, or bedding flock manufactured from rags or to have in his possession flock manufactured from rags intended to be used for any such purpose, unless the flock conforms to such standard of cleanliness as may be prescribed by regulations to be made by the Local Government Board, and, if any person sells or uses or has in his possession flock in contravention of this Act, he shall be liable on summary conviction to a fine not exceeding, in the case of a first offence, ten pounds, or in the case of a second or subsequent offence fifty pounds.

56 & 57 Vict.
c. 65.

(2) All regulations made by the Local Government Board under this Act shall be laid before Parliament as soon as may be after they are made, and the Rules Publication Act, 1893, shall apply to such regulations as if they were statutory rules within the meaning of section one of that Act.

(3) Where, in any proceedings against a person charged with an offence under this Act, it is proved that an offence under this Act has been committed, but that the person charged with the offence—

(a) purchased the flock in respect of which the offence was committed from a person resident within the United Kingdom who sold the flock under a warranty that it complied with the prescribed standard of cleanliness; and

(b) took reasonable steps to ascertain, and did in fact believe in, the accuracy of the statement contained in the warranty;

the person so charged shall be entitled upon an information duly laid by him to have the person who gave the warranty brought before the court, and that person may be summarily convicted of the offence, and the person originally charged shall be exempt